

- Water Management Technical Manual.

It is the responsibility of the applicant to identify all relevant legislative requirements. The NSW Legislation website should be regularly checked for the most up-to-date version of all legislation and can be accessed at: www.legislation.nsw.gov.au

1.5 COMPLIANCE

Section 4.15 of the *EP&A Act* requires Council to take this DCP into consideration when determining applications. Compliance with the provisions of this DCP does not necessarily guarantee that consent to a DA will be granted. Each DA will be assessed having regard to the current LEP, DCP, adopted Council policies, State Environmental Planning Policies, and any other matters listed in Section 4.15 of the *EP&A Act*.

1.6 SAVINGS PROVISION

If an application has been made before the commencement of WDCP, but not finally determined, the development application must be determined as if WDCP had not commenced.

All applications made after the commencement date of an amendment to the WDCP are subject to WDCP as amended at the date of lodgement.

Please refer to the Amendment History at the front of WDCP for relevant commencement dates.

A reference to an application in the paragraph above is a reference to:

- a development application;
- an application to modify a development consent;
- an application to review a determination of a development application; or
- an application to review an application to modify a development consent.

1.7 OFFENCES

Sections 9.37 and 9.50 of the *EP&A Act* provides that where any matter or thing is by or under this Act or Regulation directed or forbidden to be done, a person offending against that direction or prohibition shall be guilty of an offence against this Act.